

HEADNOTE

“1. If the defendant comprehensively addresses licensing negotiations between itself and a patent pool in its substantiation of the FRAND objection it has raised, the plaintiff can only comprehensively reply to this submission if it is able to consult with employees of the patent pool. If the plaintiff is initially prevented from such consultation by an application aimed at the protection of trade secrets (Rule 262A RoP), its right to be heard can be taken into account by extending its deadline for reply to this submission accordingly upon request.

2. Even if an application for confidentiality protection relates only to a delineated part of a written submission, such as the statements on the FRAND objection, a time extension limited to only that part can be dispensed with in the interests of effective case management and to prevent a permanent divergence of deadlines, provided that the conduct of the oral hearing is not jeopardized by a time extension relating to the entire written submission.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 3 490 258 B1

METHOD AND RECORDING MEDIUM
STORING CODED IMAGE DATA

KEYWORDS

Extension of Deadline

Trade Secret Protection

Rule 262A Request

FRAND Defence

Partial Deadline Extension

Rule 262A Protection of Confidential Information

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and recording medium storing coded image data. According to the headnotes of the decision, when a defendant raises a FRAND objection based on licensing negotiations with a patent pool, the plaintiff must have adequate opportunity to respond, which may require extending its deadline if access to patent pool employees is restricted by confidentiality claims under the Rules of Procedure. Where confidentiality protection applies only to specific parts of a written submission, such as FRAND-related statements, the court may extend the deadline for the entire submission rather than just the protected section, provided this does not compromise effective case management or prejudice the oral hearing.